IN THE NATIONAL COMPANY LAW TRIBUNAL
AMARAVATI BENCH
(*Through Hybrid Mode)*

Item No.11
IA (CA) NO. 34 OF 2025, IA (CA) NO. 35 OF 2025 in
CP (CAA)/4/230/AMR/2024 in CA (CAA)/02/230/AMR/2024

IN THE MATTER OF:
M/s. Haragovind Enterprises Pvt Ltd (Transferor Company)
--- Petitioner Company

Under Section: 230 of Companies Act, 2013.
Rule: 13 R/w Rule 11 of NCLT Rules, 2016

Order delivered on 09.09.2025

CORAM:
SHRI UMESH KUMAR SHUKLA — **HON'BLE MEMBER (TECHNICAL)**
SHRI KISHORE VEMULAPALLI — **HON'BLE MEMBER (JUDICIAL)**

PRESENT:
In CP
For the Petitioners : Mr. V. Venkata Rami Reddy, Adv.
For RD (SER) : Ms. Kusuma Yadav
In IAs
For the Applicant in IA (CA) No. 34 of 2025 and IA (CA) No. 35 of 2025 : Mr. V. Venkata Rami Reddy, Adv.

ORDER

IA (CA) No.34 of 2025:

This application has been filed by the Applicant/Transferor Company, namely, M/s. Haragovind Enterprises Private Limited under Rule 11 read with Rule 13 of the NCLT Rules, 2016 seeking to permit the Applicant Company to amend the Scheme of Merger, which is annexed as Annexure-B to the Application.

2. The Counsel of the Applicant submitted that the original Scheme of Merger has been amended by inserting Part-V– Clause 25, which deals with justification of selection of the Appointed Date as 01.04.2023. The Counsel of the Applicant further submitted that as per para 6 (c) of the Ministry of Corporate Affairs General Circular No.09/2019 dated 21.08.2019 on the 'Clarification under Section 232(6) of the Companies Act, 2013', if the Appointed Date is significantly ante-dated beyond a year

from the date of filing, the justification for the same would have to be specifically brought out in the Scheme and it should not be against the public interest.

3. The Counsel for the Applicant Company submitted that the Petition was filed on 26.12.2024 and appointed date for the Scheme is 01.04.2023, which although is ante-dated beyond a year from the date of filing of the Petition, however the same is justified on the following grounds, as stated in the Application:

> ***25. Part – V - Justification of selection of Appointed Date as 01.04.2023***
>
> *25.1 The Transferee Company and Twelve (12) Subsidiary Companies of the Transferor Company are significantly engaged and are extensively treating the patients specifically suffering from all categories of Dragon Disease i.e. Cancer, spread their hospitals across the Country under the Brand name "Omega Hospitals".*
>
> *25.2 The expertise of Dr Chigurupati Mohana Vamsy and his team of Doctors have lots of appreciation in treating the Patients suffering from cancer. To compete with the existing scientific necessities in treating the said disease, acquiring numerous advanced technological and scientific machinery, operates and to meet the requirement of Artificial Intelligence, it is very much necessary to have lots of investments.*
>
> *25.3 In the above scenario, it was thought fit by the Board of Directors of the Transferor Company and Transferee Company to invite Strategic Investors who can invest about Rs. 500.00 Crores to enable the companies to meet out the requirements.*
>
> *25.4 Subsequently, to fulfill the above said thought process, the Board of Directors have identified a company by name* ***"North Haven Private Equity Asia V (A Fund managed by Morgan Stanley Private Equity Asia), NHPEA V Sunshine (BVI) Limited"*** *(An*

Investor) who can invest to the said extent in the Transferee Company.

25.5 As a part of implementation in inviting the said investment, a ***"Non-binding Term Sheet for acquiring Equity Stake in Omega Hospitals Group"*** *was entered on 12.10.2023 between Morgan Stanley Asia Limited and Hyderabad Institute of Oncology Private Limited (HIOPL), Haragovind Enterprises Private Limited and all their Subsidiaries and affiliates (Collectively the "Company" or "Omega Hospitals Group").*

25.6 Thereafter, an Agreement called "Implementation Agreement" was entered between the Transferee Company, Promoters and the Investor on 18.04.2024.

25.7 The proposed Merger was envisaged out of the following Investment Agreements:

a. Non-binding Term Sheet for acquiring Equity Stake in Omega Hospitals Group dated 12.10.2023
b. Shareholders Agreement dated 18.04.2024
c. Securities Subscription Agreement dated 18.04.2024.
d. Implementation Agreement 18.04.2024.

25.8 The investment will boost the research programme of introducing Artificial Intelligence (AI) into Cancer Treatment and provide advanced and better health care facility in the field of cancer and the Transferee Company also provide Arogyasree Programme which is so much helpful to the poor and needy.

25.9 The said agreement is very specific with regard to implementation of the Composite Transaction and for further investment, the said agreement has specified a Clause No. 5.3 called as "Merger" which specifies the merger of the Transferor Company into the Transferee Company. With the said effect, all the Subsidiaries of the

Transferor Company will become the Subsidiaries of the Transferee Company.

25.10 The above said invitation of investment and further implementation of the said investment, in greater interest of the companies involved in the Scheme as well as the stakeholders, the shareholders of the companies, the selection of 01.04.2023 as appointed date is very much essential and justifiable.

25.11 The Annual Accounts as on 31.03.2023 were approved in the subsequent Annual General Meeting held on 30.09.2023. Therefore, it was genuinely, without having any kind of ambiguity with regard to financials of both the Transferor and Transferee Companies and to gain confidence of the Investor, the said 01.04.2023 was selected as Appointed Date.

25.12 That the sequential effect without having any bearing or binding or influence or affect on any part of the Financials / Accounts including the Secured Creditors and Unsecured Creditors, since the Annual Accounts for the Financial Year 2023-24 were not yet approved as on the date of filing of the Application (06.10.2024), the selection of the said 01.04.2023 as appointed date is very much justifiable.

25.13 That there were procedural and functional delays in filing of the Application and Petition including obtaining the Reports of the Regional Director, Official Liquidator and the Income Tax Department, which are non-intentional and unpredictable delays and of part of procedural consequences which are out of the control of the both the companies.

25.14 That there was the proposal for the Scheme of Merger and the said fact of the Proposed Merger was mentioned at Clause 2.31 of the Notes forming part of Accounts submitted for the Financial Year ending with 31.03.2023. Though the proposed Appointed Date was

mentioned as 01.11.2022, for the reasons of post effect and affect of Covid Pandemic situation, there were functional delays and therefore, the Appointed Date has been selected as 01.04.2023.

25.15 That in compliance with Section 232(6) of the Companies Act, 2013 read with Section 232(5), the Appointed Date has been selected to comply with the General Circular No. 09/2019, issued by the Ministry of Corporate Affairs vide F No. 07/12/2019/CL-I dated 21.08.2019, to have a sequential effect in selecting a significant ante date as Appointed Date i.e. 01.04.2023 since the Audited Accounts were approved by the Board of Directors and the Shareholders for the period ending on 31.03.2023. Moreover, the Appointed date is a beginning date of a fresh Financial Year and the approval of the Accounts for the Financial Year 2023-24 are approved on 31.12.2024, which is very much later of filing of the Application before the Hon'ble National Company Law Tribunal. Therefore, the selection of Appointed Date as 01.04.2023 is very much justified as the beginning of the fresh Financial Year having every term of the accounts of the financial year can be compared with the previous and current figures to the exact position and validity without any deviation to maintain utmost transparency and accuracy. The above submissions are very much justifiable and brought out as compliance with Para 6(c) of the said Circular.

25.16 That the sequence of dates which are essential to verify in selecting the said date as Appointed Date has been explained thoroughly at Para V (Page 23 to 25) of the Consolidated Affidavit dated 06.08.2025 as was directed by the Hon'ble NCLT vide their orders dated 24.07.2025. The said sequence of dates submitted are furnished here under.

a. The Board Meeting of the Transferor Company approving the Scheme of Amalgamation was held on 27.05.2024.

b. *An Application vide Companies Act, 2013 (CAA) No. 02/230/AMR/2024 (called as the 1st Motion Petition) for the Scheme herein was filed before this Hon'ble Tribunal on 06.10.2024.*

c. *The Hon'ble Tribunal has granted exemption from conducting the meetings of Shareholders, Secured Creditors and Unsecured Creditors of the Transferor Company with the powers vested with them under Section 230(9) of the Companies Act, 2013, since consent affidavits were produced by the Transferor Company vide orders dated 06.11.2024.*

d. *Thereafter, the Transferor Company has filed the Main Petition vide CP (CAA) No. 04/230/AMR/2024. The Hon'ble Tribunal has issued directions to issue notice to the Regional Director, MCA, the Registrar of Companies, the Official Liquidator and to the Income Tax Authorities including publication of the said notice in two daily News Papers, one in English Daily and other in Telugu Daily. Notices were issued and publication was done accordingly. Proof of service of notice and the publication of notice were filed before the Hon'ble Tribunal on 30.01.2025.*

e. *The Annual General Meeting for the Financial Year 2023-24 was held on 31.12.2024 in which the Financial Statements for the Financial Year 2023-24 were approved. The Appointed Date is well within the stipulated financial year for which the Financials were approved in the Annual General Meeting.*

f. *The above sequence of dates demonstrates that the proposed Appointed Date is well within the functionary and there is no deviation from the Regulations stipulated under Section 230 to 232 and other applicable Provisions of the*

Companies Act, 2013 read with Rule 3 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

g. The valuation and accounting treatment proposed under the scheme is based on the audited financial statements as on 31.03.2023. Using 01.04.2023 as the appointed date ensures continuity from that audit cutoff and avoids the need for additional interim financial statements or reconciliations. The proposed appointed date does not cause any prejudice to the rights or interests of shareholders, creditors, or other stakeholders.

25.17 The Scheme and the selection of Appointed Date as 01.04.2023 is for very much convenience with regard to the continuation of the further Financial Year and moreover, the resolution with this effect has been passed by the Board of Directors in the interest of the Petitioner company and its shareholders and stakeholders. There is no Public Interest involved as both the companies to the Scheme are closely held companies with common shareholders and common directors. No one's and No corporate body's interest is affected with the approval and sanction of this Scheme of Merger.

4. The Counsel for the Applicant Company further submitted that as per Clause 18.1 of the original Scheme, the Board of Directors of the Company may make any alteration or modification to the Scheme without any further approval from shareholders and creditors. The relevant extract of Clause 18.1 of the original Scheme is reproduced hereunder:

18. MODIFICATIONS / AMENDMENTS TO THE SCHEME

18.1 The Company through their respective Board of Directors including Committees of Directors or other persons, duly authorised by the respective Boards in this regard, without any further approval from shareholders and creditors may make, or assent to, any alteration or modification to this Scheme or to any conditions or limitations, which may otherwise be considered necessary, desirable or appropriate by the said Board of Directors to resolve all doubts or difficulties that may arise for carrying out this Scheme and to do and execute all acts, deeds matters, and things necessary for bringing this Scheme into effect or agree to any terms and / or conditions or limitations that the NCLT or any other appropriate authorities under law may deem fit to approve of, to direct and / or impose.

5. In accordance with the above clause, the Board of Directors of both Companies at their respective meetings held on 22.08.2025 have approved the draft amendments proposed to the Scheme of Merger between M/s. Haragovind Enterprises Private Limited [Transferor Company] and M/s. Hyderabad Institute of Oncology Private Limited [Transferee Company] for inserting a new clause as Part V – Clause 25, with the heading 'Justification for Selection of Appointed Date as 01.04.2023'. The relevant Board Resolution of the Transferor Company is reproduced hereunder:

EXTRACTS OF THE MINUTES OF THE MEETING OF THE BOARD OF DIRECTORS OF HARAGOVIND ENTERPRISES PRIVATE LIMITED HELD ON FRIDAY, 22ND AUGUST, 2025 AT 11.00 A.M. AT THE OFFICE OF THE COMPANY SITUATED AT OMEGA HOSPITALS, HR MANI TOWERS, SEVEN HILLS COLONY, SY. NO.18 (P), SERILINGAMPALLI, GACHIBOWLI, HYDERABAD-500032, TELANGANA.

Annexure -

4. APPROVAL OF AMENDMENT TO THE SCHEME OF MERGER FILED UNDER SECTIONS 230–232 OF THE COMPANIES ACT, 2013.

"RESOLVED THAT pursuant to the provisions of Sections 230 to 232 and other applicable provisions, if any, of the Companies Act, 2013 ("the Act"), read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 ("the Rules"), including any statutory modification(s) or re-enactment thereof for the time being in force, and subject to the approval of the Hon'ble National Company Law Tribunal ("NCLT") and such other approvals, permissions and sanctions as may be required from regulatory authorities, the draft amendments proposed to the Scheme of Merger between Haragovind Enterprises Private Limited [Transferor Company] and Hyderabad Institute of Oncology Private Limited [Transferee Company], placed before the Board and initialed by the Chairman for the purpose of identification, be and are hereby approved."

"RESOLVED FURTHER THAT under the heading parts of the scheme, Serial No.5 be inserted after Serial No.4 as "Part -V deals with the Justification of selection of Appointed Date as 01.04.2023" in compliance with General Circular No. 09/2019, issued by the Ministry of Corporate Affairs vide F No. 07/12/2019/CL-I dated 21.08.2019."

"RESOLVED FURTHER THAT in the Scheme of Amalgamation, a new clause shall be inserted as *Part V – Clause 25*, with the heading 'Justification for Selection of Appointed Date as 01.04.2023', immediately after the existing Clause 24 as follows:

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"RESOLVED FURTHER THAT Hara Govind Chigurupati, Director is hereby authorised to prepare, finalise, sign, verify, execute, and file all necessary applications, petitions, affidavits, declarations, amendments, counters, Rejoinders, Forms and other documents with the Hon'ble NCLT, Registrar of Companies, Regional Director, Official Liquidator, Income Tax Authorities and such other statutory/regulatory authorities as may be required, and to do all such acts, deeds, matters and things as may be necessary, desirable or expedient in connection with giving effect to this resolution."

//CERTIFIED TRUE COPY//
For **HARAGOVIND ENTERPRISES PRIVATE LIMITED**

Haragovind Enterprises Pvt. Ltd.

HARA GOVIND CHIGURUPATI
DIRECTOR
DIN: 07636911
PLACE: HYDERABAD
DATE: 22.08.2025

6. We note that the Income Tax Department had given No Objection with reference to the Appointed Date of 01.04.2023. Although the Regional Director (SER)/RoC and

OL had raised objections for Appointed Date of 01.04.2023 being ante-dated beyond a year from the date of filing of the Petition and in view of these objections, the Applicant Company has made amendment in the Scheme by including the justification for choosing the Appointed Date being 01.04.2023, which is ante-dated beyond a year from the date of filing of the Petition, in accordance with the Ministry of Corporate Affairs General Circular No.09/2019 dated 21.08.2019. The representative of the RD/RoC was present during the hearing but raised no objection to the aforesaid amendment to the Scheme. In view of the above, we consider it appropriate to allow the instant Application and permit the Applicant Company to amend the Scheme with the liberty granted to the RD/RoC and OL to file their supplementary report in the main CP, if any, on the amendment to the Scheme, within three weeks of this order, failing which, it would be presumed that they have no objection to the Appointed Date of 01.04.2023, after the justification for the same has been included in the Scheme in accordance with the MCA Circular.

Accordingly, IA (CA) No.34 of 2025 is allowed and disposed of.

IA (CA) No.35 of 2025:

This application has been filed by the Applicant/Transferor Company under Rule 13 read with Rule 11 of the NCLT Rules, 2016 seeking urgent listing of IA (CA) No.34 of 2025.

Since IA (CA) No.34 of 2025 has been heard today, the instant IA becomes infructuous. **Accordingly, IA (CA) No.35 of 2025 is disposed of as infructuous.**

CP (CAA)/4/230/AMR/2024 in CA (CAA)/02/230/AMR/2024:

Heard. **Reserved for Order.**

Sd/-
(UMESH KUMAR SHUKLA)
MEMBER (TECHNICAL)

Sd/-
(KISHORE VEMULAPALLI)
MEMBER (JUDICIAL)